



Notification Waiver Determination

TMX – Cboe Australia

Acquisition	TMX Markets Australia Pty Ltd (TMX), a wholly-owned subsidiary of TMX Group Limited (TMX Group), applied for a notification waiver in respect of its proposed acquisition of 100% of the shares in Middlebury Holdings Pty Limited (Middlebury Holdings) (including its wholly-owned subsidiaries), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	15 May 2026

Parties to the Acquisition	The acquirer, TMX, is a special purpose vehicle incorporated for the purpose of the Acquisition, and does not carry out any business operations in Australia. TMX is a subsidiary of TMX Group, a publicly traded company that operates globally and builds digital communities and analytic solutions that facilitate the funding, growth and success of businesses, traders and investors. TMX Group's key operations include Toronto Stock Exchange (TSX), TSX Venture Exchange, TSX Alpha Exchange, the Canadian Depository for Securities, Montréal Exchange, Canadian Derivatives Clearing Corporation, TSX Trust, TMX Trayport, TMX Datalinx, TMX VettaFi and TMX Newsfile, which together provide listing markets, trading markets, clearing facilities, depository services, technology solutions, data products and other services to the global financial community. TMX is headquartered in Toronto and operates offices across North America (Montréal, Calgary, Vancouver and New York), as well as in key international markets including London, Singapore, and Vienna. The target, Middlebury Holdings, is the holding company for Cboe Australia Pty Ltd (Cboe Australia) and Cboe Australian Services Pty Ltd (Cboe Australian Services). Cboe Australia is an ASIC-regulated securities market operator that provides investors with access to local and global investment opportunities. It operates as an alternative exchange in Australia, and facilitates trading in a range of financial products, including ASX-listed equities, exchange-traded funds and structured products, supported by the proprietary trading technology derived from Cboe Global Markets' international platforms. Cboe Australia Services provides various technical services, including software development and network management, and corporate services to Cboe Australia.
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	TMX and Cboe Australia supply exchange services in Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the Acquisition does not result in the removal of a competitor as TMX does not operate an exchange in Australia b. there is limited overlap between TMX and Cboe Australia in the supply of exchange services in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Woodward pursuant to a delegation under section 25(1) of the Act